

8. 9:00 AM CASE NUMBER: C23-00009
CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.
HEARING ON SUMMARY MOTION SUMMARY JUDGMENT/MOTION FOR SUMMARY
ADJUDICATION (SEE 4/29/26 HEARING)
FILED BY: VISTNES, M.D., MICHAEL DEAN
TENTATIVE RULING:

On the Court's own motion, the hearing on this motion is continued to September 30, 2026, at 9:00 a.m., in Department 16. No appearance is required on September 16, 2026.

9. 9:00 AM CASE NUMBER: C23-00009
CASE NAME: MICHELLE DALY VS. MICHAEL VISTNES, M.D.
HEARING ON SUMMARY MOTION FOR SUMMARY JUDGMENT/ADJUDICATION FILED
FILED BY: WHEATON, R.N., JEFF
TENTATIVE RULING:

On the Court's own motion, the hearing on this motion is continued to September 30, 2026, at 9:00 a.m., in Department 16. No appearance is required on September 16, 2026.

10. 9:00 AM CASE NUMBER: C23-02401
CASE NAME: KIARA ROSS VS. KOTLIER ERNEST M.
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL (SET BY THE COURTROOM)**
FILED BY:
TENTATIVE RULING:

SUMMARY

Plaintiffs Kiara Ross, Felicia Costa, and Mark Piepowski ("Plaintiffs") Motion for Preliminary Approval of Class Action Settlement with Defendants Sequoia Equities, Incorporated and Alder Creek Management, Inc.'s (jointly referred to as "Sequoia Equities") is granted as set forth herein. No appearance is required at the hearing on September 16, 2026.

BACKGROUND AND KEY TERMS

This class action arises from Sequoia Equities deposit administration practices at approximately 67 California apartment complexes. Plaintiffs who are former tenants at Sequoia Equities managed properties, allege systematic violations of California Civil Code § 1950.5. Specifically, Plaintiffs contend that Sequoia Equities uniformly failed to provide itemized statements with supporting vendor invoices within the statutorily mandated 21-day period after tenants vacated, and improperly reported unsubstantiated alleged debts to collection agencies, damaging tenants' credit.

The litigation commenced in September 2023. Following initial discovery disputes, the parties entered into a comprehensive stipulation in December 2024, streamlining the case for mediation. Pursuant to that stipulation, Defendants produced a randomized 20% sample of tenant files comprising over 608,000 pages of documents, including Final Accounting Statements ("FAS Packets"). Plaintiffs' counsel manually reviewed 1,048 FAS Packets and determined that approximately 85.6% were non-